

Andhra Pradesh Compulsory Registration of Marriages Rules, 2003

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State of Andhra Pradesh - Act

Andhra Pradesh Compulsory Registration of Marriages Rules, 2003

ANDHRA PRADESH

India

Andhra Pradesh Compulsory Registration of Marriages Rules, 2003

Rule ANDHRA-PRADESH-COMPULSORY-REGISTRATION-OF-MARRIAGES-RULES-2003 of 2003

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Andhra Pradesh Compulsory Registration of Marriages Rules, 2003

Published vide Notification No. G.O. Ms. No. 35. Women Development, Child Welfare and Disabled Welfare (Prog), dated 24.09.2003

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No. G.O. Ms. No. 35. - In exercise of the powers conferred by Section 21 of the Andhra Pradesh Compulsory Registration of Marriage Act, 2002, (A.P. Act 15 of 2002) the Governor of Andhra Pradesh hereby makes the following Rules:

1.

(i) Short title.

- These Rules may be called the "Andhra Pradesh Compulsory Registration of Marriages Rules, 2003".

(ii)

These Rules shall come into force on the date of its publication in the Official Gazette.

2.

Definitions.

(a)

"Act" means the Andhra Pradesh Compulsory Registration of Marriages Act, 2002.

(b)

"Form" means the forms appended to these Rules.

(c)

"Marriage Register" means a register kept in Form "a".

(d)

"Registrar General" means the Registrar General of Marriages appointed under the Act.

(e)

"Registrar" means a 'Registrar of Marriages', appointed under the Act.

(f)

"Marriage Officer" means a Marriage Officer appointed under the Act.

(g)

"Local authority" means the local Gram Panchayat or local Municipality or Municipal Corporation, as the case may be.

3.

(1)

Where marriages are.

(a)

registered under the Hindu Marriage Act, 1955, Special Marriages Act, 1954, Indian Christian Marriage Act, 1872, Parsi Marriage and Divorce Act, 1936, officers designated to register the marriages;

(b)

performed by Christian Priests or Kazis or Parsi Priests and records are maintained regarding the marriages performed by them, the Christian Priests, Kazis and Parsi Priests; and

(c)

performed by the persons appointed or licensed under law to perform the marriages and records are maintained regarding the marriages performed by them those appointed or licensed persons.

In case of all modes of marriages the concerned officer, priest, Kazi or licensed persons shall send a copy of the marriage certificate issued to the parties to the marriages, on or before 30th of every succeeding month regarding the marriage registered by them in the preceding month to the concerned Marriage Officer of the locality appointed under sub-section (1) of Section 6 of the Act.

The above sub-rule shall not preclude the parties to such marriage from directly approaching the local Marriage Officer appointed under the Act and get the same registered.

4.

Every Marriage Officer should display his name, designation as Marriage Officer in Telugu, English and the local language of the area conspicuously at his office.

5.

The territorial jurisdiction of the Marriage Officers under Section 6 of the Act shall be co-terminus with the territorial jurisdiction of the Officer of the local body who registers the births and deaths of that area.

6.

The Memorandum of the Marriage shall be in Form "B" and shall be signed by the bride and the bridegroom and by two witnesses for each party, duly affixing the passport size photograph of the bride and the bridegroom or a marriage photo on the Memorandum of Marriage and the duplicate Memorandum and the same shall be presented by the parties to the marriage to the Marriage Officer within thirty days from the date of marriage for registration of the factum of the marriage.

7.

If any Memorandum received by the Marriage Officer is not accompanied by the duplicate Memorandum or is defective in any respect, he may require the parties to the marriage to furnish the duplicate thereof, or to rectify the defects or the

same may be returned to them for rectification and resubmission within the time to be fixed by him.

8.

The Marriage Officer shall have every item of rectification in Memorandum of marriage attested by both the parties.

9.

As soon as the Memorandum of Marriage is received by the Marriage Officer, a serial number and the date of receipt of Memorandum shall be noted on the Memorandum.

10.

The Marriage Officer shall supply the blank forms or Memorandum of marriage free of cost to the parties to the marriage.

11.

The Marriage Officer shall specify on the title page of every blank register issued to him the number of pages contained in that register and also note down the date on which it was received and opened by him.

12.

All the Marriage Registers maintained by the Marriage Officers and District Registrars shall be preserved permanently.

13.

(i)

The Marriage Officer shall register the marriage entering the particulars of marriage in his own hand in the Marriage Register. Both the parties and also two witnesses for each party shall sign in the Marriage Register.

(ii)

This rule does not apply to the marriage where a copy of the marriage certificate was furnished to the Marriage Officer under Rule 3.

14.

The Marriage Officer shall furnish the marriage certificate in Form "C" free of cost to bride and groom soon after registration of the factum of Marriage.

15.

The Marriage Officers shall maintain a separate register for the copies of the marriage certificate received by them under Rule 3 of the above Rules.

16.

Any person aggrieved by any order of the Marriage Officer may within thirty days from the date of such order appeal to the District Registrar.

17.

Any person aggrieved by the order of the District Registrar, may prefer a revision before the Registrar General within thirty days from the date of such order.

18.

The Marriage Officer may proceed to any place outside his office for registration of marriage provided there is an application in writing and signed by the parties and upon being provided with conveyance and a fee of Rs. 500 is paid, and register a marriage.

19.

Duties of the Registrar General of Marriages.

- The Registrar General of Marriages: -

(i)

Shall exercise over-all superintendence and control over the functioning of the District Registrars of Marriages, Marriage Officers and other functionaries under the Act.

(ii)

Shall prescribe the registers to be maintained by the District Registrars and Marriage Officers.

(iii)

Shall inspect the Registration Offices throughout the State and issue such direction as may be required for proper implementation of the provisions of the Act.

(iv)

Shall delegate any of his functions to the District Registrars for proper implementation of the provisions of Act.

(v)

Shall fix various charges under the Act from time to time and issue notification in the Andhra Pradesh Gazette.

(vi)

Shall maintain annual consolidated statement of the marriages registered, district-wise and furnish the same to the Government.

20.

Duties of the District Registrar of Marriages.

-The District Registrar of Marriages: -

(i)

Shall inspect the marriage registration offices periodically and issue such instruction as are required for proper implementation of the provisions of the Act.

(ii)

Shall consolidate the quarterly returns and annual returns of all the Marriage Officers under his control and submit the same to the Registrar General of marriages with his observations.

(iii)

In the absence of any Marriage Officer, the District Registrar of Marriages shall register the marriage following the due formalities.

21.

Duties of the Marriage Officers.

- The Marriage Officers: -

(i)

Shall maintain and update the prescribed registers referred to in the Rules.

(ii)

Shall submit monthly returns along with the duplicate copies of the Memorandums of Marriage received to the District Registrar of Marriages on or before 30th of every succeeding month regarding the marriage registered by him in the preceding month.

(iii)

The Marriage Officer shall institute prosecution with the prior sanction of the Registrar General under Section 18 of the Act.

(iv)

On application for grant of certified copies of the extracts of the Marriage Register or certificate or other records, the Marriage Officer or the District Registrar shall grant the same under his signature and official seal.

22.

On every application for grant of certified copies of the extracts of the marriage register or other records, a fee of Rs. 10 and charges at the rate of Rs. 2 per page of such certified copies shall be paid to the District Registrar or Marriage Officer.

Schedule

Form-A

(See Rule 2(c))

Register of Marriages

Name of the Marriage Officer:Registration Area:For the day of:

Sl. No.

Date of receipt of

Date of Marriage Memorandum

Place of Marriage

Bridegroom particulars

Bride particulars

Status of Bridegroom and Bride (whether
unmarried/ widowed/ divorced)

(1)

(2)

(3)

(4)
(5)
(6)
(7)

Name of witnesses for Bride-groom and for Bride
with address

Signatures of bride-groom and bride

Signatures of
witnesses

Date and place of registration of marriage

Date of issue of marriage certificate

Signature of Marriage Officer with date and seal
affixed

Remarks

(8)
(9)
(10)
(11)
(12)
(13)
(14)

Note. - Particulars of prior permission, if any, of the Registrar General to be mentioned in case of correction, error, alteration or defect rectification relating to material particulars in the entries of marriages.

Form-B

(See Section 8)

Memorandum of Marriage

(1) Date of Marriage(2) Place of Marriage (with sufficient particulars to locate the placeBridegroom's particulars:(3) (a)
Full Name of the Bridegroom(b) Father's Name/Mothers Name(c) His Age at the time of Marriage(d) Usual Place of
residence(e) Address:(f) Status of the bridegroom at the time of marriage: (whether unmarried/ Widower/ divorced)

{|

|-

| Signature of the Bridegroom

|}

Witnesses:(1) (a) Name(b) S/o. W/o. D/o.(c) Age(d) Usual place of residence(e) Address:

Signature of the Witness.

(2) (a) Name(b) S/o. W/o. D/o.(c) Age(d) Usual place of residence(e) Address:

Signature of the Witness.

Bride's Particulars:(4) (a) Full Name of the Bride(b) Father's Name/Mother's Name(c) Her Age at the time of Marriage(d)
Usual place of residence(e) Address:(f) Status of the bride at the time of marriage: (whether unmarried/ widow/divorced)

Signature of the Bride.

Witnesses:(1) (a) Name(b) S/o. W/o. D/o.(c) Age(d) Usual place of residence(e) Address:

Signature of the Witness.

(2) (a) Name(b) S/o. W/o. D/o.(c) Age(d) Usual place of residence(e) Address:

Signature of the Witness.

Note. - Passport size photo or a marriage photo

Form-C

(See Section 12)

Marriage Certificate

[Under the Andhra Pradesh Compulsory Registration of Marriage Act, 2002]I.....hereby certify that I have
registered the marriage of bridegroom AB son of Sri.....with bride CD daughter of Sri.....on this.....day
of.....200.....in pursuance of the memorandum date the.....day of. received by me from the parties and the same

has been entered at Serial No.....in page.....of the Register of Marriages maintained by me.Date:

District Registrar of Marriages/Marriage Officer of the Local Area.Address:

Form-D

(See Rule 21 (ii))

Return of Registration of Marriages

Monthly/Quarterly/Return to be submitted by the Marriage Officer to the District Registrar at local area level.Name of the

Marriage Officer:.....For the month/quarter of:.....For the month/quarter of:.....Registration area:

Number of Registrations

Sl.No.

Local Area

Christian

Hindu

Muslim

Other types

Total

Total:Signature of Marriage OfficerRegistration area

Form-F

(See Rule 19(vi))

Annual/Consolidated Return to be furnished by the Registrar General to the State Government at State Level

For the year

Number of Registrations

Sl.No.

Local Area

Christian

Hindu

Muslim

Other types

Total

Remarks

Total:Signature of Marriage OfficerRegistration area

Form-G

(See Rules 18 and 22)

Return of collections and remittance of fees and Charges

Monthly return to be submitted by the Marriage Officer to the District Registrar of his District

Name of the Marriage Officer:Registration Area:For the month of:.....

TABLE

Sl.No.

Particulars of collections

Amount collected in Rupees

Amount remitted into the Treasury

Challan No. and Date

(1)

(2)

(3)

(4)

(5)

AbstractTotal amount collected for the month:.....Rs.....Total amount remitted in the month:.....Rs.....

Signature of Marriage Officer:Registration AreaDistrict.

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Translation